

SENATE No. 2663

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, November 10, 2025.

The committee on Consumer Protection and Professional Licensure to whom was referred the petition (accompanied by bill, Senate, No. 222) of William J. Driscoll, Jr. for legislation to regulate Hemp-derived beverages by imposing a fine if a person that is involved in establishing or maintaining an infused beverage manufacturing operation without an endorsement granted by the commission, report the accompanying bill (Senate, No. 2663).

For the committee,
Pavel M. Payano

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An Act to regulate hemp-derived beverages like alcohol.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by inserting after
2 section 2DDDDDD the following section:-

3 Section 2EEEEEE. Hemp Beverage Public Health and Local Enforcement Trust Fund.
4 There shall be established and set up on the books of the commonwealth a separate fund to be
5 known as the Hemp Beverage Public Health and Local Enforcement Trust Fund. The fund shall
6 be administered by the department of public health. The fund shall consist of: (i) amounts
7 credited under section 2 of chapter 64O; and (ii) any appropriations, grants, gifts or other monies
8 authorized by the general court and specifically designated to be credited to the fund. Amounts in
9 the fund may be expended, without further appropriation, to: (A) conduct public education on
10 illicit hemp and cannabis products; and (B) make grants to municipal and regional boards of
11 health to enforce sections 331 and 332 of chapter 94. The department may expend not more than
12 10 per cent of amounts deposited in a fiscal year for administration. The department shall
13 distribute not less than 60 per cent of fiscal-year deposits as grants using a formula that accounts
14 for population and demonstrated enforcement need. Monies remaining at the end of a fiscal year

shall not revert to the General Fund and shall be available for expenditure in subsequent fiscal years. Not later than October 1 of each year, the department shall file a report on receipts and expenditures from the prior fiscal year with the clerks of the senate and the house of representatives and the house and senate committees on ways and means.

SECTION 2. The General Laws are hereby amended by inserting after chapter 64N the following chapter:-

Chapter 64O.

HEMP BEVERAGE EXCISE TAX

Section 1. As used in this chapter, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Hemp beverage”, as defined in section 1 of chapter 94G.

“Hemp beverage product”, as defined in section 1 of chapter 94G.

“Manufacturer”, any person who holds a hemp beverage manufacturer license or a certificate of compliance issued by the cannabis control commission pursuant to section 23 of chapter 94G.

“Person”, a natural person, corporation, association, partnership or other legal entity.

“Retailer”, any person authorized to sell hemp beverages at retail pursuant to section 25 of chapter 94G or section 81 of chapter 138.

“Wholesaler”, any person authorized to sell hemp beverages at wholesale pursuant section 80 of chapter 138.

35 Section 2. (a) An excise of \$2.20 per gallon shall be imposed on all hemp beverage
36 products for sale in the commonwealth. For products manufactured in the commonwealth for
37 sale in the commonwealth, the manufacturer shall file and pay on a schedule set by the
38 department of revenue. For products shipped into the commonwealth for sale in the
39 commonwealth, the tax shall be filed and paid by the wholesaler that first possesses the products
40 for distribution or sale in the commonwealth. Hemp beverage products shall be exempt from
41 sales tax. Hemp beverage products stored or manufactured in the commonwealth but sold outside
42 the commonwealth are not subject to this excise. The rate applies to the finished product volume
43 in gallons; partial gallons prorated.

44 (b) Any person who shall knowingly purchase, sell or possess any hemp beverage not
45 manufactured in, produced in or imported into the commonwealth by a licensed manufacturer or
46 wholesaler, shall, in addition to any other penalties provided for violation of any provisions of
47 this chapter or chapter 94G, be subject to a fine equal to double the amount of the excise which
48 would have been payable by a licensee subject to this section if such hemp beverage had been
49 imported or sold by such licensee. The state police and all local police authorities shall have
50 authority to enforce, and shall, at the request of the commissioner of revenue or their duly
51 authorized agent, enforce the provisions of this paragraph.

52 (c) The commissioner of revenue shall administer this section under chapter 62C. Sums
53 received, less refunds and abatements, shall be credited as follows: (i) 20 per cent to the
54 Marijuana Regulation Fund established in section 14 of chapter 94G; (ii) 20 per cent to the Hemp
55 Beverage Public Health and Local Enforcement Trust Fund established in section 2EEEEEE of
56 chapter 29; and (iii) the balance to the General Fund. The commissioner shall certify monthly the
57 amounts due, and the state treasurer shall transfer such amounts accordingly. Amounts credited

under clause (i) from the excise imposed on hemp beverage products shall be deemed hemp-beverage receipts for purposes of subsection (d) of section 14 of chapter 94G.

SECTION 3. Chapter 94 of the General Laws is hereby amended by adding the following 3 sections:-

Section 330. As used in this section and sections 330 to 332, inclusive, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Cannabinoid”, as defined in section 1 of chapter 94G.

“Governmental entity”, an official body of the commonwealth, or an official body of a county, city or town within the commonwealth.

“Hemp”, as defined in section 116 of chapter 128.

“Hemp beverage”, as defined in section 1 of chapter 94G.

“Hemp beverage product”, as defined in section 1 of chapter 94G.

“Industrial hemp”, as defined in section 116 of chapter 128.

“Intoxicating cannabinoid”, as defined in section 1 of chapter 94G

“Person”, a natural person, corporation, association, partnership or other legal entity.

“Transportable hemp concentrate”, as defined in section 1 of chapter 94G.

Section 331. No product containing any intoxicating cannabinoid shall be sold, distributed or otherwise transferred in the commonwealth unless such product is: (i) a prescription drug as defined in section 1 of chapter 94C; (ii) a food ingredient generally

77 recognized as safe by the U.S. Food and Drug Administration; (iii) marijuana or a marijuana
78 product sold, distributed or transferred in accordance with chapter 94G; (iv) medical use
79 marijuana sold, distributed or transferred in accordance with chapter 94I; (v) a transportable
80 hemp concentrate, hemp beverage or a hemp beverage product sold, distributed or transferred in
81 accordance with chapter 94G and sections 79 to 81, inclusive, of chapter 138; (vi) industrial
82 hemp sold, distributed or transferred in accordance with chapter 128; and (vii) seeds of the plant
83 *Cannabis sativa* L.

84 Section 332. (a) Upon reasonable suspicion of a violation of section 331, a local board of
85 health shall conduct examinations and investigations and may take samples of products for
86 analysis to determine compliance with section 331.

87 (b)(1) If a local board of health determines through the examination or investigation
88 pursuant to subsection (a) that a violation of section 331 occurred, the local board of health shall
89 take enforcement action.

90 (2) For a first violation of section 331, the local board of health shall: (i) remove from the
91 premises all products in violation of section 331 and destroy said products; and (ii) provide a
92 written warning to the violating person that repeated violations may result in revocation of any
93 operating permits and licenses; provided, that the written warning may require the violating
94 person to complete an informational course that explains the laws and regulations related to the
95 sale of products that contain cannabinoids.

96 (3) For repeated violations of section 331, the local board of health shall remove from the
97 premises all products in violation of section 331 and destroy said products. Local boards of
98 health may provide written notice of the violation, within 30 days of a determination of the

violation, to the office of the attorney general, the cannabis control commission, and all governmental entities that have issued a permit or license related to the production or sale of food, alcohol, tobacco, cosmetics or drugs as defined in section 1 of chapter 94C to any violating person.

(c) The department, in consultation with the cannabis control commission, shall promulgate regulations to administer section 331 and for enforcement pursuant to this section. Regulations or rules shall establish: (i) civil administrative fines for repeated violations of section 331; (ii) requirements and programming for any informational course that explains the laws and regulations surrounding the sale of products that contain cannabinoids that may be required for a person to complete after a violation; (iii) penalties for a person required to complete an informational course pursuant to clause (ii) who fails to complete the course within 6 months of receipt of the warning; provided, that failure to complete said course shall be considered a separate violation; and (iv) an appeals process for an individual assessed a fine; provided, that an appeal shall be filed not more than 21 days after receipt of the notice of the fine.

(d) Local boards of health shall notify, in writing, all persons within their jurisdiction that have active permits or licenses relating to food, alcohol, tobacco, cosmetics or drugs as defined in section 1 of chapter 94C in a timely manner of any changes related to the local board of health's enforcement pursuant to this section or any rules established by the local boards of health related to enforcement.

(e) Nothing in this section shall be construed to exempt from penalty any person found responsible for a violation of section 331 as a result of not receiving a written communication

described in subsection (d); provided, that the local board of health shall have made a good faith effort to provide the information pursuant to subsection (d).

SECTION 4. Section 1 of chapter 94C of the General Laws, as most recently amended by section 10 of chapter 186 of the acts of 2024, is hereby further amended by striking out the definition of “Marihuana” and inserting in place thereof the following definition:-

“Marihuana”, (i) all parts of the plant *Cannabis sativa* L., whether growing or not; (ii) resin extracted from any part of the plant; and (iii) any compound, manufacture, salt, derivative, mixture or preparation of the plant; provided, however, that “marihuana” shall not include: (i) hemp as defined in section 116 of chapter 128; (ii) the mature stalks of the plant *Cannabis sativa* L and any compound, manufacture, salt, derivative, mixture, fiber or preparation, excluding resin, produced or extracted from mature stalks of the plant; (iii) the seeds of the plant and oil or cake made therefrom; and (iv) transportable hemp concentrate, hemp beverage or hemp beverage product as defined by section 1 chapter 94G.

SECTION 5. Section 1 of chapter 94G of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out the definition of “Cannabinoid”, and inserting in place thereof the following 2 definitions:-

“Artificially-derived cannabinoid”, a cannabinoid created by one or more human-induced chemical reactions, syntheses, conversions, isomerizations or modifications; provided, however, that “Artificially-derived cannabinoid” shall not include: (i) a naturally-occurring chemical substance that is separated from the cannabis plant by a chemical or mechanical extraction process; or (ii) a cannabinoid that is produced by decarboxylation of a naturally-occurring cannabinoid acid without the use of a chemical catalyst.

“Cannabinoid”, any small organic molecule capable of interacting, either as an agonist, antagonist or inhibitor, whether reversible or irreversible, with a cannabinoid receptor, including CB1 and CB2 receptors.

SECTION 6. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by striking out the definition of “Hemp” and inserting in place thereof the following definition:-

“Hemp”, as defined in section 116 of chapter 128.

SECTION 7. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by inserting after the definition of “Host community agreement” the following 2 definitions:-

“Hemp beverage”, a beverage intended for human consumption that is not an alcoholic beverage as defined in section 1 of chapter 138 and that contains, or is advertised, labeled or offered for sale as containing, intoxicating cannabinoids derived from hemp; a hemp beverage is not “food” under section 1 of chapter 94.

“Hemp beverage product”, a hemp beverage in a container intended for retail sale for off-premises consumption; a hemp beverage product is not “food” under section 1 of chapter 94.

SECTION 8. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by striking out the definition of “Independent testing laboratory” and inserting in place thereof the following 2 definitions:-

“Independent testing laboratory”, a laboratory that is licensed by the commission and is:
(i) accredited to the most current International Organization for Standardization 17025 by a

third-party accrediting body that is a signatory to the International Laboratory Accreditation Cooperation mutual recognition arrangement or that is otherwise approved by the commission; (ii) independent financially and without a direct or indirect interest in any entity whose product is being tested and without a direct or indirect interest in any medical marijuana establishment, any licensee or marijuana establishment, or any facility that manufactures, processes, distributes, dispenses or sells hemp beverages or hemp beverage products; and (iii) qualified to test marijuana in compliance with regulations promulgated by the commission pursuant to this chapter.

“Intoxicating cannabinoid”, a cannabinoid with intoxicating properties that acts on the central nervous system to alter perception, cognition, or behavior. “Intoxicating cannabinoid” shall include, but shall not be limited to, delta-6-tetrahydrocannabinol, delta-8-tetrahydrocannabinol, delta-9-tetrahydrocannabinol, delta-10-tetrahydrocannabinol, and delta-9-tetrahydrocannabinolic acid A. “Intoxicating cannabinoid” shall not include cannabidiol, cannabidiolic acid, cannabidivarin, cannabidivarinic acid, cannabichromene, cannabichromenic acid, cannabigerolic acid, cannabigerol, and cannabinol unless otherwise designated by the cannabis control commission.

SECTION 9. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by striking out the definition of “Marijuana” or “Marihuana” and inserting in place thereof the following definition:-

“Marijuana” or “Marihuana”, all parts of any plant of the genus Cannabis, not excepted below and whether growing or not; and resin extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture or preparation of the plant, its seeds or resin,

including tetrahydrocannabinol as defined in section 1 of chapter 94C; provided, however, that marijuana shall not include: (i) the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture or preparation of the mature stalks, fiber, oil or cake made from the seeds of the plant, or the seeds of the plant *Cannabis sativa* L; (ii) hemp as defined in section 116 of chapter 128; (iii) transportable hemp concentrate, hemp beverages or hemp beverage products; or (iv) the weight of any other ingredient combined with marijuana to prepare topical or oral administrations, food, drink or other products.

SECTION 10. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by inserting after the definition of “Marijuana products” the following definition:-

“Multi-serving beverage product”, (i) a marijuana-infused beverage under this chapter that contains more than one serving as determined by the commission; or (ii) a hemp beverage product registered under section 27 that contains more than one serving as determined by the commission.

SECTION 11. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by striking out the definition of “Production batch” and inserting in place thereof the following 2 definitions:-

“Production batch”, a batch of finished plant material, cannabis resin, cannabis concentrate, hemp beverage product or marijuana-infused product made at the same time using the same methods, equipment and ingredients; the licensee or entity authorized to manufacture hemp beverages shall assign and record a unique, sequential alphanumeric identifier to each production batch for production tracking, product labeling and product recalls; all production

batches shall be traceable to one or more cultivation batches, except that a production batch of hemp beverage products shall be traceable to the transportable hemp concentrate used to manufacture such products.

“Qualified out-of-state testing laboratory”, a laboratory that is: (i) accredited to the most current International Organization for Standardization 17025 by a third-party accrediting body that is a signatory to the International Laboratory Accreditation Cooperation mutual recognition arrangement or that is otherwise approved by the commission; (ii) independent financially from any entity for which it conducts a test and from any entity that manufactures or sells marijuana or marijuana products, hemp beverages or hemp beverage products; (iii) qualified to test hemp beverages or hemp beverage products in compliance with regulations promulgated by the commission pursuant to this chapter, including, but not limited to, a requirement that the entity submit an attestation demonstrating financial independence as required by this chapter; (iv) licensed or otherwise authorized in its home jurisdiction to test hemp or cannabis; and (v) certified and in good standing with the commission.

SECTION 12. Said section 1 of said chapter 94G, as so appearing, is hereby further amended by inserting after the definition of “Terpenoid” the following 2 definitions:-

“THC analog”, a cannabinoid with CB1 agonist activity structurally related to delta-9-tetrahydrocannabinol, including positional and stereoisomers and simple esters.

“Transportable hemp concentrate”, the product of a chemical or physical process applied to naturally-occurring hemp biomass that: (i) concentrates or isolates the cannabinoids contained in the biomass; (ii) is derived from hemp plants that, based on sampling collected not more than 30 days before harvest, contain a combined concentration of total THC and any THC analogs of

less than 0.3 per cent on a dry weight basis; (iii) has a total concentration of THC and THC analogs of less than 20 per cent in purified state; and (iv) is intended to be processed into a hemp beverage product.

SECTION 13. Said chapter 94G is hereby further amended by adding the following 6 sections:-

Section 23. Manufacture of hemp beverages

(a) No person shall manufacture a hemp beverage that is intended to be stored, distributed, sold or offered for sale in the commonwealth unless such person holds a hemp beverage manufacturer license or a certificate of compliance issued by the commission pursuant to this section. The commission may impose a fine of up to \$10,000 on a person that advertises, announces, establishes, maintains or is concerned in establishing or maintaining a hemp beverage manufacturing operation without a license or a certificate of compliance issued by the commission under this section. Each day during which a violation continues shall constitute a separate offense. The commission may conduct surveys and investigations to enforce compliance with this section.

(b) The commission shall issue for a term of one year, and renew for a like term, a license to manufacture hemp beverages under this section to an entity that submits to the commission, in a form and manner prescribed by the commission, an application that demonstrates eligibility for a license under this section. Such a license shall be subject to suspension, revocation or refusal to renew for cause. Any application for a license under this section, or renewal thereof, shall be accompanied by an application processing fee in the amount of five thousand dollars. The commission shall approve or deny such an application within thirty days of submission.

(c) The commission shall not issue a license under this section unless the applicant holds an unencumbered license to: (i) manufacture alcoholic beverages issued by the alcoholic beverages control commission under section 19 of chapter 138; (ii) manufacture marijuana-infused products issued by the commission under this chapter; or (iii) manufacture hemp products issued by the department of agricultural resources under chapter 128.

(d) No holder of a license or certificate of compliance under this section shall sell a hemp beverage or hemp beverage product to any person in the commonwealth unless such person holds a license or certificate of compliance from the commission to manufacture hemp beverages under this section or to sell hemp beverage products at wholesale issued under section 24.

(e) A holder of a license issued under this section may utilize existing facilities and equipment to manufacture hemp beverages and hemp beverage products in accordance with regulations promulgated by the commission. No hemp beverage manufacturer shall obtain any hemp or hemp product for the purpose of manufacturing any hemp beverage that is intended to be manufactured, sold or offered for sale in the commonwealth unless such hemp product is in the form of transportable hemp concentrate, and no such hemp beverage manufacturer shall use any hemp product other than transportable hemp concentrate to manufacture any such hemp beverage or hemp beverage product; provided, however, that a hemp beverage manufacturer that is also licensed by the department of agricultural resources under chapter 128 to manufacture hemp products may obtain hemp or hemp product other than transportable hemp concentrate if so authorized under said chapter 128.

(f) The commission shall issue a certificate of compliance to an out-of-state brand owner, importer of record, or manufacturer that seeks to ship hemp beverage products into the

commonwealth, provided that: (1) each hemp beverage product is registered with the commission under section 27; (2) the applicant is lawfully permitted under the laws of the state or territory of the United States in which the relevant facility is located to manufacture, distribute or sell the product category, as applicable; (3) the applicant designates a single responsible certificate holder for the brand and appoints an agent for service of process in the commonwealth; (4) the applicant identifies all manufacturing, packaging, fulfillment and distribution locations, including any co-packer or third-party logistics provider, and updates the commission within 10 business days of any change; and (5) the applicant agrees to comply with this chapter and regulations promulgated hereunder that pertain to a similarly situated in-state entity. The holder of a certificate of compliance issued under this section shall furnish from time to time as the commission may require, but in no event more often than once each month, information concerning all shipments or sales of hemp beverage products made by them into the commonwealth. The commission may suspend, cancel or revoke any certificate issued hereunder for a violation of the terms or conditions thereof. All certificates shall be issued to expire December thirty-first of the year of issuance and the fee therefor shall be no less than \$200. The commission shall issue a certificate of compliance within thirty days of application submission.

Section 24. Intoxicating cannabinoid designations

(a) The commission may by regulation designate substances as intoxicating cannabinoids or non-intoxicating cannabinoids for purposes of this chapter.

(b) The commission may issue a temporary order, effective upon filing with the secretary of the commonwealth, designating or revising a designation under subsection (a) when necessary to protect public health or to prevent circumvention of this chapter. A temporary order shall state

the reasons for the action and shall remain in effect for not more than 180 days, and may be renewed once for not more than 180 days.

(c) The commission shall maintain and publish on its website a current list of substances designated as intoxicating cannabinoids and non-intoxicating cannabinoids under this section.

Section 25. Multi-serving beverage products

(a) A multi-serving beverage product, whether such product is a hemp beverage product or a marijuana-infused beverage, may be sold at retail only by: (1) a marijuana retailer licensed under this chapter; and (2) a medical marijuana treatment center licensed under chapter 94I. Sales under this subsection shall be subject to regulations of the commission.

(b) A person authorized to manufacture hemp beverages under subsection (c) of section 23 or under section 19 of chapter 138 may manufacture hemp beverage products in multi-serving containers, provided that each product is registered with the commission under section 27 and complies with regulations promulgated under this chapter.

(c) Notwithstanding any general or special law to the contrary, a person licensed under section 18 of chapter 138 may import and sell at wholesale multi-serving hemp beverage products registered under section 27 to marijuana retailers licensed under this chapter and to medical marijuana treatment centers licensed under chapter 94I. No wholesale sale shall be made to a licensee under section 15 of chapter 138.

(d) A licensee under chapter 138, including a licensee under section 15 of said chapter, shall not purchase, accept delivery of, possess, store, transport, distribute, offer for sale or sell a multi-serving hemp beverage product, except as expressly permitted in subsection (c).

(e) A multi-serving hemp beverage product shall not be considered “marijuana” or a “marijuana product” for purposes of inventory tracking, daily purchase limits, or other sales limitations applicable to marijuana or marijuana products under this chapter. The commission may establish separate recordkeeping requirements for multi-serving hemp beverage products sold by marijuana retailers and medical marijuana treatment centers.

(f) A multi-serving hemp beverage product shall be sold only as a sealed consumer package. A marijuana retailer or medical marijuana treatment center shall not open, portion or otherwise dispense servings for on-premises consumption, except as authorized for a social consumption establishment licensed by the commission under this chapter and in accordance with regulations of the commission.

(g) Notwithstanding any general or special law or regulation to the contrary, a marijuana product manufacturer licensed under this chapter may manufacture marijuana-infused beverages in multi-serving containers, subject to regulations of the commission, provided that such beverages are packaged and labeled in accordance with this chapter and regulations of the commission..

Section 26. Age restriction

No hemp beverage product shall be sold to any individual who is younger than twenty-one years of age. No owner, agent or employee of a business authorized to sell hemp beverage products shall sell any hemp beverage product to an individual without first verifying the individual's age with a valid government-issued driver's license or identity card to establish that such individual is twenty-one years of age or older.

Section 27. Hemp beverage product registration; standards for hemp beverage products

(a) No hemp beverage product shall be sold in the commonwealth unless such product is registered with the commission and complies with this section. The commission shall publish a publicly available list of registered hemp beverage products.

(b) The commission shall register a hemp beverage product following submission of an application, in a form and manner prescribed by the commission, that demonstrates compliance with this section. At a minimum, such application shall include: (i) the name and address of the applicant; (ii) the name and address of the brand or company whose name shall appear on the label of the hemp beverage product; (iii) the name of the hemp beverage product; (iv) the name and address of the site where the hemp beverage product with which the final product was manufactured; (v) a complete copy of the front and back of the label that will appear on the hemp beverage product; and, (iv) a certificate of analysis from an independent testing laboratory or a qualified out-of-state testing laboratory for the production batch for each product. Such registration shall be subject to suspension or revocation for cause. Any initial application for registration under this section shall be accompanied by a registration processing fee in the amount of two hundred dollars. The commission shall approve or deny such an application within thirty days of submission. Any of the following shall require a new product registration and fee: (i) any change in the chemical composition or formula of a hemp beverage product other than a change in flavor; (ii) a change to the serving size or directions for use of a hemp beverage product; or, (iii) any significant change to the label of a hemp beverage product as determined by the commission.

(c) No hemp beverage product may be distributed or sold in the commonwealth unless such product:

(1) has a certificate of analysis prepared by an independent testing laboratory or a qualified out-of-state testing laboratory that states the hemp beverage or hemp beverage product is from a production batch that has been tested for, and does not contain more than trace amounts of, pesticides, residual solvents, metals, harmful pathogens, and toxicants;

(2) accurately reflects testing results and contains less than a ten percent variance of the concentration of total cannabinoid content as listed on the product label;

(3) is distributed or sold in a container that is: (i) suitable to contain products for human consumption; (ii) not attractive to children; (iii) a minimum of 7.5 ounces in volume; and, (iv) tamper evident; and,

(4) complies with the labeling and warning requirements specified in subsection (d).

(d) No hemp beverage product may be distributed or sold in the commonwealth unless the label of such product:

(1) is plainly identifiable to a reasonable consumer that the product is a hemp beverage product;

(2) includes a scannable barcode or quick response code linked to the certificate of analysis of the hemp beverage from an independent testing laboratory or a qualified out-of-state testing laboratory;

(3) includes the expiration date, brand name, list of ingredients and the name, and address of the product manufacturer or distributor;

(4) specifies the number of milligrams of each cannabinoid per serving and serving size, if specific cannabinoids are contained within or marketed for the product;

(5) does not include any claim that the product may be used or is effective for the prevention, treatment, or cure of a disease or that it may be used to alter the structure or function of human or animal bodies unless such claim has been approved by the federal Food and Drug Administration; and,

(6) includes a warning label containing the following or substantially similar language: (i) a statement that the product has not been evaluated or approved by the United States Food and Drug Administration (unless such approval has been secured); (ii) the potential for the product to cause the consumer to fail a drug test for THC; (iii) a statement that products containing THC may cause impairment and impact a consumer's ability to operate a vehicle; (iv) a statement that the product is not recommended for use by pregnant or breastfeeding women; (v) a statement that product use may result in health risks and medication interactions; (vi) a statement in capital letters to KEEP THIS PRODUCT OUT OF REACH OF CHILDREN; and (vii) a statement or infographic that the product is intended only for individuals age 21+.

(e) The commission shall establish by regulation a maximum amount of intoxicating cannabinoids per hemp beverage product container; provided, however, that such maximum amount per container established by the commission shall be 5 milligrams per container or shall equal the container limit for marijuana products established by the cannabis control commission under this chapter, whichever is greater. The commission shall establish by regulation requirements and standards to ensure that hemp beverages do not contain artificially-derived cannabinoids.

Section 28. Regulations for the implementation of sections 23 to 27, inclusive

403 The commission, in consultation with the alcoholic beverages control commission
404 established under section 70 of chapter 10, shall promulgate regulations for the implementation
405 sections 23 to 27, inclusive. The commission may, in its discretion, promulgate regulations
406 regarding the manufacture, labeling and registration of hemp beverage products; provided
407 however, such regulations shall not conflict with sections 23 to 27, inclusive, and otherwise shall
408 not be more restrictive than regulations promulgated by the alcoholic beverages control
409 commission under chapter 138 governing the manufacture, labeling and registration of alcoholic
410 beverages. Notwithstanding any general or special law to the contrary, the commission may
411 enter into one or more interagency service agreements with the alcoholic beverages control
412 commission for the enforcement of sections 23 to 27, inclusive. For purposes of this chapter, the
413 alcoholic beverages control commission shall regulate and enforce with respect to licensees
414 under chapter 138 and the commission shall regulate and enforce with respect to licensees under
415 this chapter.

416 SECTION 14. Chapter 138 of the General Laws is hereby amended by inserting after
417 section 78 the following 4 sections:-

418 Section 79. Definitions applicable to sections 79 through 83, inclusive

419 As used in sections 79 to 83, inclusive, the following words shall have the following
420 meanings unless the context clearly requires otherwise:

421 “Hemp beverage product”, as defined in section 1 of chapter 94G.

422 “Multi-serving beverage product”, as defined in section 1 of chapter 94G.

423 Section 80. Wholesale of hemp beverage products

(a) No person shall sell a hemp beverage product at wholesale in the commonwealth unless such hemp beverage product is registered by the cannabis control commission pursuant to section 27 of chapter 94G and unless such person holds a hemp beverage product wholesaler and importer license issued by the commission pursuant to this section. The commission may impose a fine of up to \$10,000 on any person that advertises, announces, establishes, maintains or is concerned in establishing or maintaining a hemp beverage wholesaler without a license issued by the commission. Each day during which a violation continues shall constitute a separate offense. The commission may conduct surveys and investigations to enforce compliance with this section.

(b) The commission shall issue for a term of one year, and renew for a like term, a license to import or sell hemp beverage products at wholesale to an entity that submits to the commission, in a form and manner prescribed by the commission, an application that demonstrates eligibility for a license under this section. Such a license shall be subject to suspension, revocation or refusal to renew for cause. Any application for a license under this section, or renewal thereof, shall be accompanied by an application processing fee in the amount of five thousand dollars. The commission shall approve or deny such an application within thirty days of submission.

(c) The commission shall not issue a license under this section unless the applicant holds an unencumbered license to import or sell alcoholic beverages at wholesale issued under section 18 of this chapter.

(d) No holder of a license under this section shall sell a hemp beverage product to any person unless such person holds: (i) a license issued under this section to sell hemp beverage

products at wholesale; (ii) a license issued under section 80 of this chapter to sell hemp beverage products at retail; (iii) a license to operate a marijuana retailer issued by the cannabis control commission under chapter 94G; or (iv) a license to operate a medical marijuana treatment center issued by the cannabis control commission under chapter 94I.

No holder of a license under this section shall sell a multi-serving hemp beverage product to any person unless such person holds (i) a license issued under this section to sell hemp beverage products at wholesale; (ii) a license to operate a marijuana retailer issued by the cannabis control commission under chapter 94G; or (iii) a license to operate a medical marijuana treatment center issued by the cannabis control commission under chapter 94I.

Section 81. Retail of hemp beverage products

(a) No person shall sell, or offer for sale, at retail a hemp beverage product unless such hemp beverage product is registered by the cannabis control commission pursuant to section 27 of chapter 94G and unless such person holds: (i) a hemp beverage product retailer license issued by the commission pursuant to this section; (ii) a license to operate a marijuana retailer issued by the cannabis control commission under chapter 94G; or (iii) a license to operate a medical marijuana treatment center issued by the cannabis control commission under chapter 94I. The commission may impose a fine of up to \$10,000 on a person that advertises, announces, establishes, maintains or is concerned in establishing or maintaining a retail establishment that sells, or offers for sale, at retail hemp beverage products in violation of this subsection. Each day during which a violation continues shall constitute a separate offense. The commission may conduct surveys and investigations of its licensees to enforce compliance with this section.

(b) The commission shall issue for a term of one year, and renew for a like term, a license to sell hemp beverage products at retail to an entity that submits to the commission, in a form and manner prescribed by the commission, an application that demonstrates eligibility for an such license under this section. Such a license shall be subject to suspension, revocation or refusal to renew for cause. Any application for a license under this section, or renewal thereof, shall be accompanied by an application processing fee in the amount of five hundred dollars. The commission shall approve or deny such an application within thirty days of submission.

(c) The commission shall not issue a license under this section unless the applicant holds an unencumbered license to sell all alcoholic beverages or beer and wine at retail under section 15 of this chapter.

(d) No holder of a license under this section shall purchase hemp beverage products to be sold at retail from any person unless such person holds a license to wholesale hemp beverage products issued by the commission under section 24.

(e) No holder of a license under this section shall sell at retail, or offer for sale at retail, a multi-serving hemp beverage product.

Section 82. Age restriction

No hemp beverage product shall be sold to any individual who is younger than twenty-one years of age. No owner, agent or employee of a business authorized to sell hemp beverage products shall sell any hemp beverage product to an individual without first verifying the individual's age with a valid government-issued driver's license or identity card to establish that such individual is twenty-one years of age or older.

Section 83. Regulations for the implementation of sections 79 to 82, inclusive

The commission, in consultation with the cannabis control commission, shall promulgate regulations for the implementation sections 79 to 82, inclusive. The commission may, in its discretion, promulgate regulations regarding the advertisement, distribution, importation, and retail of hemp beverage products; provided however, such regulations shall not conflict with sections 79 to 82, inclusive, and otherwise shall not be more restrictive than regulations promulgated by the commission under chapter 138 governing the advertisement, distribution, importation, and retail of alcoholic beverages.

Notwithstanding any general or special law to the contrary, the commission may enter into one or more interagency service agreements with the cannabis control commission for the enforcement of sections 79 to 82, inclusive. For purposes of this chapter, the cannabis control commission shall regulate and enforce with respect to licensees under chapter 94G and the alcoholic beverages control commission shall regulate and enforce with respect to licensees under this chapter.

SECTION 15. The cannabis control commission and the alcoholic beverages control commission shall promulgate regulations for the implementation of this Act not later than 180 days following its effective date.